80th Congress, 1st Session - - - - - - - - House Document, No. 80-481, Part 8

Foreign Relations of the United States 1946

Volume VIII

The Far East



United States
Government Printing Office
Washington : 1971

tion furnished by one or more powers might be considered a threat by another or other powers.

Respectfully yours,

MAX W. BISHOP
Foreign Service Officer

[Enclosure]

Press Release Issued by General Headquarters, United States Army Forces, Pacific, at Tokyo, March 6, 1946

The Emperor of Japan today[27] issued the following Imperial Rescript:

"Consequent upon our acceptance of the Potsdam Declaration the ultimate form of Japanese government is to be determined by the freely expressed will of the Japanese people. I am fully aware of our nation's strong consciousness of justice, its aspirations to live a peaceful life and promote cultural enlightenment and its firm resolve to renounce war and to foster friendship with all the countries of the world. It is, therefore, my desire that the Constitution of our empire be revised drastically upon the basis of the general will of the people and the principle of respect for the fundamental human rights. I command hereby the competent authorities of my government to put forth in conformity with my wish their best efforts toward the accomplishment of this end."

SWNCC 272 Series

Memorandum by the State–War–Navy Coordinating Subcommittee for the Far East[28]

SECRET [WASHINGTON,] 11 March 1946.
SWNCC 272/1

SOVEREIGNTY OF FORMOSA

1. The State–War–Navy Coordinating Subcommittee for the Far East has considered the cable from the Commanding General, U.S. Forces, China Theater, presented in SWNCC 272/D,[29] and recommends that the following action be taken:

a. Upon approval by the SWNCC of the cable in the Appendix, the cable be forwarded to the JCS for transmittal to the Commanding

[27] March 5.
[28] Approved by SWNCC on March 25 and transmitted by Department's instruction 511, March 28, 1946, to Chungking. The Joint Chiefs of Staff sent the same as War 83004, 2 April 1946, to the Commanding General, U.S. Forces, China Theater (Wedemeyer) at Shanghai.
[29] March 5, 1946, not printed.

General, U.S. Forces, China Theater, subject to their comments from a military point of view;

b. Upon notification by the JCS that the cable in the Appendix has been dispatched to the Commanding General, U. S. Forces, China Theater, the cable be forwarded by SWNCC to the State Department for appropriate action.

[Annex]

Draft Message to Commanding General, United States Forces, China Theater, Shanghai, China

SECRET

(Reference, Cfbx 23362 [30])

1. *a.* The Cairo Declaration of December 1, 1943, provides that "Formosa . . . shall be restored to the Republic of China".

b. The Potsdam Declaration of July 26, 1945, provides in paragraph 8:

"The terms of the Cairo Declaration shall be carried out and Japanese sovereignty shall be limited to the islands of Honshu, Hokkaido, Kyushu, Shikoku, and such minor islands as we determine".

c. The first paragraph of the Instrument of Surrender of September 2, 1945, reads:

"We, acting by command of and in behalf of the Emperor of Japan, the Japanese Government, and the Japanese Imperial General Headquarters, hereby accept the provisions set forth in the declaration issued by the heads of the Governments of the United States, China and Great Britain on 26 July 1945, at Potsdam, and subsequently adhered to by the Union of Soviet Socialist Republics, which four powers are hereafter referred to as the Allied Powers."

d. In view of the foregoing, it would appear that Japan has lost sovereignty over Formosa.

e. By virtue of the assumption and exercise of governmental authority by the Republic of China in Formosa pursuant to the Cairo Declaration and the signature of the representatives of the governments of China and Japan, the State Department considers that Formosa has been restored to the Republic of China but that this transfer may eventually have to be formalized by appropriate treaty arrangements.

2. The position of the United States in regard to Japanese assets located in Chinese territory formerly occupied by the Japanese was communicated to the American Embassy at Chungking in a telegram dated September 25, 1945.[31] It was stated that, provided provision is made for subsistence of Japanese nationals pending repatriation

[30] February 16, 1946, not printed.
[31] No. 1543, not printed.

and for financing from such assets expenditures directly related to the repatriation or resettlement of Japanese nationals or other displaced persons in China and provided United Nations' interests which may have been co-mingled with Japanese properties are not confiscated, the United States Government had no objection to Chinese action confiscating on behalf of the Chinese Government Japanese private and public property physically located in Chinese territory formerly occupied by the Japanese which would return to Chinese jurisdiction; that at the time of final settlement of reparations the United States Government would assume the position that Japanese assets confiscated by China should be credited against the Chinese Government's reparation claims; and that, therefore, account should be kept of the value of the property so confiscated.

3. In view of the legal opinions expressed in paragraph 1 above, the position of the United States outlined in paragraph 2 above is held to be applicable to Formosa as well as other Chinese territory formerly occupied by the Japanese which has now returned to Chinese control.

4. Above is for your information. The disposition by the Chinese of Japanese property in Formosa and the national status of residents of Formosa (as distinguished from the operational task of repatriation of Japanese) are considered to be political matters which may best be handled through normal diplomatic channels. This statement is therefore being forwarded by the State Department to the U.S. Embassy in Chungking for appropriate action in consultation with you.

5. Repatriation procedure outlined in second paragraph your Cfbx 23362 approved.

740.00119 Control (Japan)/3-1246

Memorandum by Mr. William J. Sebald, of the Office of the Political Adviser in Japan [32]

[Extract]

CONFIDENTIAL TOKYO, March 12, 1946.

POLITICAL PARTIES IN JAPAN: DEVELOPMENTS DURING THE WEEK ENDING MARCH 9, 1946

Summary. The bickerings of the political parties were almost entirely overshadowed by the publication of the Government's draft Constitution,[33] strongly supported by simultaneous statements issued

---

[32] Copy of memorandum transmitted to the Department in despatch 302, March 12, 1946, from Max W. Bishop, of the same office; received March 25.

[33] For text of second Japanese Government draft of constitution (Cabinet draft), March 6, see *Political Reorientation of Japan*, p. 631.

date of 16 October 1946 this headquarters issued a memorandum to the Japanese Government stating that repatriation of Koreans in Japan, who were formerly residents of Korea south of the 38 degrees north latitude, would be completed on or before 15 December 1946 except for those who have already refused to comply with reparation [*repatriation?*] plans. Koreans refusing repatriation and electing to remain in this country make their choice with full knowledge that continued residence in Japan subjects them to all appropriate local laws and regulations.

Discrimination in favor of Koreans in Japan which would exempt them from the observance of appropriate local laws and regulations would create a form of extraterritoriality. This would be without justification from any point of view and would be contrary to general Allied policy in the light of the action of various governments in the last few years in relinquishing the vestiges of extraterritorial jurisdiction in other countries."

740.00119 Control (Japan)/11-2146

The Department of State to the Chinese Embassy

AIDE-MÉMOIRE

Reference is made to a recent oral inquiry by a member of the staff of the Chinese Embassy concerning the status of Taiwanese in Japan, and the related question of their exemption, as United Nations nationals, from the jurisdiction of Japanese police and, in criminal cases, from the jurisdiction of Japanese courts. In this connection, it is understood that the Chinese Government now considers all Taiwanese to be Chinese, excepting only those who have executed before the proper authorities a declaration of unwillingness to acquire Chinese nationality.

It is the view of the Department that the removal of United Nations nationals from the jurisdiction of Japanese police and courts was a measure designed primarily to facilitate the work of the occupation authorities and to safeguard occupation personnel. Americans and most other nationals of members of the United Nations who are not engaged in occupational duties have in general been repatriated from Japan, and there do not exist there the facilities which would be necessary for properly maintaining order and administering justice were the privilege of exemption from Japanese jurisdiction to be extended to a large community of persons for whom it was not intended. In particular, it is considered that exemption from Japanese jurisdiction was not intended to be accorded the estimated 20,000 persons in Japan claiming to be Taiwanese; these persons throughout the war were enemy nationals and according to Japanese law still retain Japanese nationality, excepting only those who have individually divested themselves thereof in accordance with established procedure.

The rights of the Taiwanese in Japan to this special treatment therefore would appear to rest upon the technical grounds of the extension to them under Chinese law of the status of Chinese nationals. It should, however, be pointed out that from the legal standpoint the transfer of Taiwan's sovereignty remains to be formalized; assumably a treaty of cession will in due course be negotiated which will effect such transfer and which may contain provisions in regard to appropriate change in the national status of Taiwan's residents. It is, of course, not now possible to state with certainty that the terms of such a treaty will effect a change in the national status of persons of Taiwanese derivation who have abandoned their Taiwanese residence and settled in other lands. Finally, it should be pointed out that a great proportion of the alleged Taiwanese in Japan are without Chinese certificates of identity and nationality.

In this connection, it would be most helpful if the Chinese authorities would undertake to screen all Taiwanese in Japan, repatriating those who are unable to establish that they have a legitimate means of livelihood and issuing suitable certificates of identity to the remainder. Should the number of individuals in Japan now claiming a special status as Taiwanese be reduced through such a process to a relatively small body of properly investigated and documented persons, it might be possible to extend to them the special treatment which now is claimed for them. In the meantime, this Government would be disposed to hold that the Supreme Commander for the Allied Powers in Japan, on the basis of the aforementioned considerations and on the grounds of military necessity, would be justified in authorizing the Japanese police and courts to continue to exercise jurisdiction over Taiwanese in Japan.[45]

WASHINGTON, November 21, 1946.

894.011/11–2146

The Political Adviser in Japan (Atcheson) to the Secretary of State

No. 718 TOKYO, November 21, 1946.
[Received December 2.]

Subject: Amendments to Japanese Government Draft Constitution Passed by the House of Representatives and the House of Peers.

[45] On November 22 the Chinese Minister-Counselor of Embassy (Tan) telephoned the Chief of the Division of Chinese Affairs (Ringwalt) "a translation from the Chinese version of a report received in his Embassy from Nanking which was to the following effect: On April 20, in reply to an inquiry from General Chu, SCAP stated that Chinese nationals, 'no matter whether from Formosa or other provinces of China', would be treated as members of the United Nations without discrimination." (740.00119 Control (Japan)/11–2146) Cf. paragraph 1 of memorandum dated April 2, p. 197.